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April 16, 2026

ENGROSSED HOUSE
BILL NO. 3790

By: Adams, Gise, West (Tammy),
Stark, Waldron, and Woolley
of the House

and

Thompson and Standridge of
the Senate

An Act relating to contracts; creating the Oklahoma Homeowner Repair Contract Protection Act; defining home solicitation contract; allowing a five-day voidable contract period for homeowners; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1100 of Title 15, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Oklahoma Homeowner Repair Contract Protection Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1101 of Title 15, unless there is created a duplication in numbering, reads as follows:

1 "Home solicitation contract" means entering into a home repair
2 contract or services in which the home repair contractor or a person
3 acting for him or her engages in a personal solicitation of the sale
4 at a residence of the buyer, and the buyer's agreement is given to
5 the contractor or a person acting for him or her. It does not
6 include a sale made pursuant to a preexisting revolving contract, or
7 a contract made pursuant to prior negotiations between the parties
8 at a business establishment at a fixed location where goods or
9 services are offered or exhibited for sale. Nothing in this act
10 shall prohibit advertising, responding to homeowner-initiated
11 contact, or performing services when contacted directly by the
12 property owner.

13 SECTION 3. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1102 of Title 15, unless there
15 is created a duplication in numbering, reads as follows:

16 1. In addition to any right otherwise to revoke an offer, the
17 homeowner has the right to cancel a home solicitation contract until
18 midnight of the fifth calendar day after the day on which the
19 homeowner signs an agreement for home repairs;

20 2. Cancellation occurs when the homeowner gives written notice
21 of cancellation via certified mail to the contractor at the address
22 stated in the agreement or offer to purchase;

23 3. Notice of cancellation is given when it is deposited in a
24 mailbox properly addressed and postage prepaid; and

1 4. Notice of cancellation given by the homeowner need not take
2 a particular form and is sufficient if it indicates by any form of
3 written expression the intention of the homeowner not to be bound by
4 the home solicitation sale.

5 SECTION 4. This act shall become effective November 1, 2026.

6 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
7 April 16, 2026 - DO PASS
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